

prejudice is GRANTED pursuant to Code of Civil Procedure section 473 and in the interests of justice. Defendant claims fraud on the underlying account.

The Court will sign the proposed order submitted with the moving papers.

25CV-05183 TD Bank USA, N.A. vs. Victor Montero

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff TD Bank USA, N.A. for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Victor Montero is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to Plaintiff's requests for admission prior to the hearing. In accordance with Code of Civil Procedure sections 2023.030(a) and 2033.280(c), the Court imposes a mandatory monetary sanction against Defendant in the amount of \$310.00 due and payable to Plaintiff thirty days from notice of entry of order.

The Court will sign the proposed order submitted with the moving papers (amended in accordance with the Court's ruling). Plaintiff is directed to provide notice of the order to Defendant.

26CV-04089 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04376 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 17, 2026
1:15 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
26CV-02047	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Ex Parte Application to Set Aside Court Judgment and for Order Staying Execution of Judgment
	Appearance required.